

24VECV05130 24VECV05130

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-11

Motion: PLAINTIFFS' MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CW%2C09%2F11%2F2026

Source SHA-256: 2924d8874134fab5917b202994f6efedcbfedff814df2adeaa52d26ed2809fc5

Case Number: 24VECV05130 Hearing Date: September 11, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JOSE CONTRERAS

& ISABEL LAINA,

Plaintiffs,

vs.

FORD MOTOR COMPANY, a Delaware

Corporation, and DOES 1 through 10,

inclusive,

Defendants.

CASE NO: 24VECV05130

[TENTATIVE]

ORDER RE:

PLAINTIFFS'
MEMORANDUM OF

POINTS
AND AUTHORITIES IN

SUPPORT
OF MOTION FOR

ATTORNEYS'
FEES, COSTS AND

EXPENSES

Dept. W

8:30 a.m.

September 11, 2026

[TENTATIVE] ORDER: The Court GRANTS Plaintiff's
Motion for Attorney Fees, in the modified amount of \$11,499.12.

Background

This is a lemon law case. Plaintiffs Jose Contreras and Isabel Laina allege that on February 27, 2022, they purchased a 2020 Ford F-150 that was manufactured by Defendant Ford Motor Company. Plaintiffs allege that the vehicle exhibited numerous defects that could not be cured after a reasonable number of repair attempts.

On October 18, 2024, Plaintiffs brought suit, alleging a single claim for Breach of Express Warranty under the Song-Beverly act.

On March 26, 2026, the parties in this case entered into a signed settlement agreement for \$105,939.00 in damages.

Now, Plaintiff moves for an award of attorney fees.

Discussion

Plaintiff requests a total of \$37,135.87 in attorney fees and costs.

(Mot. for Attorney Fees, p. 14:13.) Specifically, Plaintiff requests \$22,231.50 in reasonable fees, \$11,115.75 as a 1.5x lodestar multiplier, and \$3,788.62 in costs. (Id. p. 14:10-13.)

Plaintiff bases their request for fees on fee-shifting provision of the Song-Beverly Act, which states that a prevailing buyer can, “recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution.” (Civ. Code § 1794(d).)

i)

Fee Motion Analysis

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. ... The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” ((PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095 [internal citations omitted]); (see Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 818 [applying the lodestar method to determine attorneys’ fees in Song-Beverly action].) Thus, the Court will analyze the reasonableness of: i) Plaintiffs’ lodestar multiplier request, ii) Plaintiffs’ hourly rates, iii) Plaintiffs’ hours, and iv) Plaintiffs’ costs.

A. Lodestar Multiplier

First, the Court will analyze Plaintiffs’ request for a 1.5x lodestar multiplier (\$11,115.75). While the baseline lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including “(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award[.]” and (4) the success achieved. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far

exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (Ketchum v.

Moses (2001) 24 Cal.4th 1122, 1138-1139.)

The Court finds that the facts of this case don't support the application of a multiplier. There is no indication that this lemon law case was complex or presented any challenging legal issues, particularly considering that Plaintiffs' counsel specializes in these types of cases. Additionally, there is no evidence that Plaintiffs' counsel was precluded from taking other cases because of the nature of this case. Lemon law firm take on these cases hundreds at a time, so the opportunity cost of taking on one more is negligible. Nor is the success achieved by Plaintiff's counsel exceptional. The Court also notes that counsel's skill and experience is also being factored into the reasonableness of their fees. Thus, it would be unreasonable to award an enhancement here. (See Holguin v.

Dish Network LLC (2014) 229 Cal.App.4th

1310, 1333 ["Where, as here, the court determines that the lodestar itself constitutes a reasonable fee for the action at issue, no enhancement is warranted."].)

For these reasons, the Court declines to grant this multiplier.

B. Plaintiffs' Hourly Rates

Second, the Court will evaluate the reasonableness of Plaintiffs' hourly rates. Plaintiffs bill for the time of ten separate lawyers, a single paralegal, and an eleventh lawyer from a separate law firm. Their fee schedule is as follows:

Firm 1 – Knight Law

Lawyers

Armando Lopez - \$450.00

Colby Meagle - \$400.00

Debra Reed - \$495.00

Jacqueline Martinez - \$175.00

Jacob Cutler - \$550.00

Matias Leite - \$350.00

Russell Higgins - \$600.00

Timothy Lupinek - \$500.00

Zachary Lodmer - \$550.00

Zachary Powell - \$475.00

Paralegals

Patricia Cortazar - \$145

Firm 2 – Castillo Law

Lawyers

Marianne Collazo - \$295.00

(Kirnos Decl. Ex. A, p.
8.)

“[T]he court's discretion in awarding attorney fees is ... to be exercised so as to fully compensate counsel for the prevailing party for services reasonably provided to his or her client.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395 [emphasis added].) The trial court may reduce the award where the fee request appears unreasonably inflated, such as where the attorneys' efforts are unorganized or duplicative. (Serrano v. Unruh (1982) 32 Cal.3d 621, 635, fn. 21.) Moreover, courts have repeatedly stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the

determination of the hourly rate that will be used in the lodestar calculus. (East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.)

Here, the Court has determined that most of Plaintiffs' requested rates are too high. The Court does not believe that high-volume, boilerplate lemon law cases like this one justify such high rates. The Court has seen enough suits brought under Song-Beverly to know that every paper filed in these cases, from the Complaint, to the discovery requests, to the Demurrer oppositions are copied and pasted from templates, with minimal personalization to each client. What's more, the issues presented in this case were not novel or complex. Thus, there was no special skill or insight required to litigate this case.

For similar reasons, the Court also takes issue with Plaintiffs charging significantly higher hourly rates for some of their more experienced lawyers. The logic for why a more senior lawyer can charge higher rates is that they will bring more knowledge to the table, work more efficiently, and produce better outcomes for their clients. That logic does not hold in this context. The only motion practice in this case beyond discovery motions (that were denied) was a Motion for Summary Judgment filed by the Defendant just four days before the case settled. Additionally, this case also did not involve any complex issues of law. Whatever documents that were filed were based on templates and needed next to no specific factual personalization. Thus, charging significantly higher rates is not reasonable, as this work could have been done by a much less experienced attorney. (See *Mikhaeilpoor v. BMW of North America* (2020) 48 Cal.App.5th 240, 256 [Court of Appeals held that it was not an abuse of discretion for the trial court to reduce the hourly rates of every lawyer in a lemon lawsuit to \$350.00].)

For these reasons, the Court reduces the hourly rates of Armando Lopez, Colby Meagle, Debra Reed, Jacob Cutler, Russel Higgins, Timothy Lupinek, Zachary Lodmer, and Zachary Powell to \$350.

C. Plaintiffs' Hours Billed

Next, the Court will assess the reasonableness of the hours billed by Plaintiffs.

The

Song-Beverly Act, “requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470 [quoting *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104].)

Here, Plaintiffs bill for 54.7 hours of time, across 11 different lawyers, and a single paralegal. (Kirnos Decl. Ex. A, p. 8.) Plaintiffs also submit an 8-page billing record with over 150 individual billing entries. (*Ibid.*) By spreading their billing across so many lawyers and entries, Plaintiffs make it difficult for the Court to evaluate the reasonableness of each individual entry. “When a ‘voluminous fee application’ is made, the court may ... ‘make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure.’” (*Kerkeles v. City of San Jose* (2015) 243 Cal.App.4th 88, 102.) Moreover, “trial courts need not, and indeed should not, become green-eyeshade accountants. The essential goal in shifting fees (to either party) is to do rough justice, not to achieve auditing perfection. So trial courts may take into account their overall sense of a suit, and may use estimates in calculating and allocating an attorney’s time.” (*Fox v. Vice* (2011) 563 U.S. 826, 838.)

Here, Plaintiffs’ billings are voluminous, and thus are subject to across-the board cuts in hours. As explained, the Court’s overall sense of this suit is that it was a typical lemon law case that involved no serious motion practice beyond minor discovery disputes. Thus, this volume of billing across so many lawyers is unreasonable. For these reasons, the Court will reduce Plaintiffs’ requested hours by approximately 60%. The exact reductions are as follows:

Firm 1 – Knight Law

Lawyers

Armando Lopez: 3.4 hours
to 1.5 hours

Colby Meagle – 10.8 hours
to 5 hours

Debra Reed – 1.5 hours to
0.6 hours

Jacqueline Martinez – 6.2
hours to 2.2 hours

Jacob Cutler – 7.1 hours
to 3.1 hours

Matias Leite – 5.1 hours
to 2.1 hours

Russell Higgins – 1.5
hours to 0.6 hours

Timothy Lupinek – 2.7
hours to 1.2 hours

Zachary Lodmer – 7.4
hours to 3.2 hours

Zachary Powell – 2.3
hours to 1 hour

Paralegals

Patricia Cortazar – unchanged
at 3.5 hours

Firm 2 – Castillo Law

Lawyers

Marianne Collazo – 3.2

hours to 1.4 hours

This across-the-board

reduction brings Plaintiff's total hours billed from 54.7 to 25.4 hours.

D. Plaintiffs' Costs

Finally, the Court will evaluate Plaintiffs' request for \$3,788.62 in costs. Under CIV § 1794(d), when a buyer prevails in a Song-Beverly action, "the buyer shall be allowed . . . to recover . . . the aggregate amount of costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (CIV § 1794(d).) Thus, Plaintiffs are entitled to recover any costs they reasonably incurred as part of this litigation.

Defendant argues that all of these costs should be denied because they are unrecoverable, and lack evidentiary support. (Opp. p. 15:2-3.) Specifically, Defendant argues that because Plaintiffs provide no explanation, invoice, or receipts for their claims, the Court cannot determine whether they were reasonably incurred. (Id. p. 15:13-18.)

In Reply, Plaintiffs argue that Defendant is attempting to improperly shift the burden of proving costs. (Reply, p. 10:6-14.) Plaintiffs then assert that, under *Hadley v.*

Krepel, once costs are established by a verified memorandum, "the burden then shifts to the opposing party to show that the costs were unnecessary." (Reply, p. 10:11-12 [pin cite to *Hadley v.*

Krepel (1985) 167 Cal.App.3d

677, 682].) This is incorrect. According to *Hadley*, costs presented on a verified cost bill are, "prima facie evidence the costs, expenses and services listed were necessarily incurred, and when they are properly challenged the burden of proof shifts to the party claiming them as costs. (*Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682 [emphasis added].) Thus, the burden rests with Plaintiffs to justify their costs as reasonably incurred.

Notably, Plaintiffs do provide verified copies of their invoices and receipts for their requested costs. (See generally, Swanson Decl.) For example, Plaintiffs provide an invoice for \$1,748.75 for two deposition transcripts, paid on January 9, 2026. (Id. Ex. A.) These costs match the costs requested in Plaintiffs' original memorandum of costs. (Memo of Costs, ¶ 4.) Having reviewed these receipts and

invoices, the Court is satisfied that these costs were reasonably incurred.

In their Opposition, Defendant pre-emptively argues that Plaintiffs should not be allowed to introduce this new evidence in their Reply, as it deprives Defendant of the opportunity to respond. (Opp. p. 15:19-26.) The Court disagrees. Plaintiffs filed their initial memorandum of costs in conjunction with this motion, which acted as "prima facie evidence" of their costs. (Hadley, supra, p. 682.) Defendant then challenged the validity of these costs in their Opposition. This shifted the burden back to Plaintiffs to provide evidence of these costs. (Ibid.) Thus, the evidence provided by Plaintiffs in their Reply is the end result of Defendant challenging the validity of these costs. For this reason, the Court finds it is proper to consider this evidence.

For these reasons, the Court declines to strike any of Plaintiffs' \$3,788.62 in costs.

E. Summary

In summary, the Court declines to apply a 1.5 lodestar multiplier to this case. Additionally, the Court reduces the hourly rate of most of Plaintiffs' attorneys to \$350. Next, the Court reduces the total hours billed by Plaintiffs from 54.7 to 25.4 hours. Based on Plaintiffs adjusted hours and hourly rates, the Court recalculates Plaintiffs' reasonable attorney fees at \$7,710.50. Finally, the Court grants Plaintiffs' request for \$3,788.62 in costs.

In total, the Court GRANTS Plaintiffs' Motion for Attorney Fees in the modified amount of \$11,499.12.

Conclusion

The Court GRANTS Plaintiff's Motion for Attorney Fees, in the modified amount of \$11,499.12.

IT
IS SO ORDERED, Plaintiffs TO GIVE NOTICE.

September 11, 2026

Judge of the Superior Court